

Course name: US Patent Law and Practice

Day of class: Friday

Week 1

Date: 27/02

Topic: Holiday

Assignments: No class

Week 2

Date: 06/03

Topic: Eligible Subject Matter

Assignments: Textbook 1: Chapter 3; read and brief *Alice v. CLS Bank*, *Parker v. Flook*, and *Diamond v. Diehr*; review Supplemental Material: Patent Law, Lectures 25–26; homework: read and brief the cases for the next week

Week 3

Date: 13/03

Topic: The Utility Requirement

Assignments: Textbook 1: Chapter 4; read and brief *Brenner v. Manson*; review Supplemental Material: Patent Law, Lectures 5, 6, and 9; homework: read and brief the cases for the next week

Week 4

Date: 20/03

Topic: The Novelty Requirement

Assignments: Textbook 1: Chapter 6; read and brief *Medtronic Inc. v. Barry*; review Supplemental Material: Patent Law, Lectures 5, 6, and 9; homework: read and brief the cases for the next week

Week 5

Date: 27/03

Topic: The Non-obviousness Requirement

Assignments: Textbook 1: Chapter 7; read and brief *Graham v. John Deere* and *KSR v. Teleflex*; review Supplemental Material: Patent Law, Lectures 7, 8, and 10; homework: read and brief the cases for the next week

Week 6

Date: 03/04

Topic: Tomb Sweeping Day

Assignments: No class, self-directed learning; homework: read and brief the cases for the next week

Week 7

Date: 10/04

Topic: Patent Specification and Disclosure Requirements

Assignments: Textbook 1: Chapter 5; read and brief *McRO v. Bandai Namco Games Am.* and *Ariad Pharmaceuticals v. Eli Lilly*; review Supplemental Material: Patent Law, Lectures 3 and 4; homework: read and brief the cases for the next week

Week 8

Date: 17/04

Topic: Patent Claims and Claim Construction

Assignments: Textbook 1: Chapter 8; read and brief *Markman v. Westview Instruments* and *Phillips v. AWH Corp.*; review Supplemental Material: Patent Law, Lectures 11 and 12; homework: read and brief the cases for the next week

Week 9

Date: 24/04

Topic: Literal Infringement and Infringement under DOE; Limitations to DOE I — All Element Rule & Prosecution History Estoppel

Assignments: Textbook 1: Chapter 9(A)(B); read and brief *Graver Tank & Mfg. Co. v. Linde Air Prods. Co.*, *Corning Glass Works v. Sumitomo Electric U.S.A., Inc.*, and *Festo v. Shoketsu Kinzoku Kogyo Kabushiki*; review Supplemental Material: Patent Law at PennLaw, Lectures 14–15; homework: read and brief the cases for the next week

Week 10

Date: 01/05

Topic: Labor's Day

Assignments: No class, self-directed learning; homework: read and brief the cases for the next week

Week 11

Date: 08/05

Topic: Literal Infringement and Infringement under DOE; Limitations to DOE II — Dedication to the Public and Practicing the Prior Art

Assignments: Textbook 1: Chapter 9(B); read and brief *Johnson & Johnston Assocs. v. R.E. Serv. Co.* and *Sporting Goods Co. v. David Geoffrey & Associates*; review Supplemental Material: Patent Law at PennLaw, Lecture 16; homework: read and brief the cases for the next week

Week 12

Date: 15/05

Topic: Indirect Infringement and Other Infringement Issues

Assignments: Textbook 1: Chapter 9(C–E); read and brief *Aro Mfg. v. Convertible Top Replacement* and *Sanofi v. Watson Labs. Inc.*; homework: read and brief the cases for the next week

Week 13

Date: 22/05

Topic: Defenses

Assignments: Textbook 1: Chapter 10; review noninfringement, patent invalidity, experimental use, prior user rights, patent misuse, inequitable conduct, and laches; read and brief *Madey v. Duke University* and *Quanta Computer v. LG Electronics*; review Supplemental Material: Patent Law at PennLaw, Lecture 18; homework: read and brief the cases for the next week

Week 14

Date: 29/05

Topic: Injunctive Relief

Assignments: Textbook 1: Chapter 14(A); read and brief *eBay Inc. v. MercExchange*; review Supplemental Material: Patent Law at PennLaw, Lecture 23; homework: read and brief the cases for the next week

Week 15

Date: 05/06

Topic: Monetary Damages

Assignments: Textbook 1: Chapter 14(B–D); read and brief *Georgia-Pacific Corp. v. United States Plywood Corp.* and *In re Seagate*; review Supplemental Material: Patent Law at PennLaw, Lecture 24; homework: read and brief the cases for the next week

Week 16

Date: 12/06

Exams: Final Exam